

Statement of facts under Article XVIII, Section 3

Marvin L. Regensberg, Business Representative / Financial Secretary, IUEC Local 131 — set out so that an officer with knowledge may prefer charges under Section 2. Attachment to a notice sent to the members of Local 131. The same statement was placed before the Office of the General President.

Who is writing. Kevin Mears, journeyman elevator mechanic, Kone Inc. (subcontractor), Building 9980, Sandia National Laboratories, January–May 2025. Member of Local 131 through June 2, 2025 (withdrawn). I cannot prefer charges. Article XVIII, Section 2 of the Constitution makes it “the duty of any member or any officer of this Union who may come to have either direct or indirect knowledge of the commission of any of the above punishable offenses ... to prefer charges ... in writing.” What follows is that knowledge, in the form Section 3 requires: offense, facts, time and place, sections. Section 9 gives the General Executive Board original jurisdiction over charges against an officer.

What I seek. Nothing. Every wage and delay claim was waived in writing on May 21, 2025.

ACCUSED

Marvin L. Regensberg, Business Representative / Financial Secretary, IUEC Local 131.

TIME AND PLACE

Building 9980, Sandia National Laboratories, Albuquerque, New Mexico; January 16 through May 14, 2025; with a further act on September 2, 2026.

THE PROVING DOCUMENT

On January 22, 2025 at 4:26 PM I wrote to the Local: “I’m going to refuse to operate the car tomorrow for the hazmat team. I need to work on a written statement, and i need your assistance,” attaching a draft that requested “proper training and a chemical respirator.” At 5:10 PM Mr. Regensberg replied from the Local’s address, signed with his name and title:

“Where are you seeing ‘right to refusal’ in the contract?

You can refuse any work you want. If your run the car, are you going to stage the car for hazmat team and ant exit the area?

As for as a statement, if you put it in writing to KONE, they might fire you. Just tell them, you don’t want to do that job and ask for other work. Don’t write anything down. That is my advice.

Personally, I think you are making to much out of this. Stage the car with an N95 mask and gloves, change gloves every time. Wait five minuets for dust to settle and move to next floor.

Have them call you or radio you when they need you.

The contract is not written to change mid-stream. As a mechanic there is only so much protection we have.

There is a MOD mechanic open at TK in ABQ.”

Reproduced verbatim, including spelling.

CHARGE 1 — Article XVIII, Section 1(4): “failure or refusal to abide by the provisions of the Standard Agreement.”

Facts. On January 16, 2025 I had requested from Kone the training and protective equipment the Agreement requires; Kone refused; no training was given and no policy created. On January 22 I notified the Local in writing, as Section 1(17) obliges a member to do, and asked for help. Mr. Regensberg did not name Article XXVII, Paragraph 4 of the Agreement, already breached by the employer: “Whenever the Company asks an employee to work with ... materials and substances that pose a risk to life or health, the Company will first advise the employee of the risks and train the employee ... Suitable protective clothing and equipment must be provided.” He did not name Article XXVIII, Paragraph 4. He did not open the Article XV Oral Step, which any employee may initiate and at which “the Local Business Representative shall be present.” Between January 22 and May 14, 2025 no grievance was discussed, written, or appealed by the Local on my behalf. He asked me where the clause was.

Sections. Standard Agreement Art. XXVII Par. 4; Art. XXVIII Par. 4(a)–(c); Art. XV Par. 2–3.

CHARGE 2 — Article XVIII, Section 1(6): “failure or refusal to abide by an oath taken at the time an individual becomes a member.”

Facts. The member’s oath, Article XIII, Section 4, binds every member and every officer “to do all in my power to promote the interests of the trade and assist all members of this Local.” A member asked for assistance under the Agreement in writing. The answer was “Personally, I think you are making too much out of this,” followed by advice not to document and a referral to another employer.

Sections. Constitution Art. XIII §4.

CHARGE 3 — Article XVIII, Section 1(9): “wronging a member or officer of the IUEC by any act or acts causing economic harm.”

Facts. Following the 5:10 PM advice, I wrote the refusal alone on January 23, citing OSHA — not the operative authority on a DOE site — and lost hours from that date. On February 25 I stopped work in writing on permit status; Kone’s February 28 reply and the alternative work it arranged show no Local involvement. I paid half my apprentice’s lost wages. Alternative work under Article XXVIII, Paragraph 4(b) — “the Company, may assign the employee other tasks, when possible” — was never requested by the Local while I was in the unit. On September 2, 2026 Mr. Regensberg wrote from the Local’s address: “you also had an option to work service with KONE. I could have set that up.”

Sections. Standard Agreement Art. XXVIII Par. 4(b); the January 22, 2025 and September 2, 2026 emails.

CHARGE 4 — Constitution Article XXVII, Section 3(b): “Any member directing another person to perform unsafe work ... according to their company safety policy, the minimum OSHA Standards, or the OSH Act when there is no formal policy in place, may be disciplined.”

Facts. In a space I had told the Local “management has classified as requiring hazmat response,” Mr. Regensberg’s written instruction was: “Stage the car with an N95 mask and gloves, change gloves every time. Wait five minuets for dust to settle and move to next floor.” I had asked for a chemical respirator and training. Article XXVIII, Paragraph 3 of the Agreement makes the same conduct disciplinable: “any employee directing another person to violate the Company Safety Policy, or minimum OSHA Standards, may be disciplined.”

Sections. Constitution Art. XXVII §3(b); Standard Agreement Art. XXVIII Par. 3; 29 CFR 1910.134.

CHARGE 5 — Article XVIII, Section 1(12): action which “may bring or tend to bring the International Union and/or local unions into disrepute with the public or into conflict with the law.”

Facts. On September 2, 2026, from the Local’s official address, on a thread that had reached the DOE Office of Inspector General, the NNSA Employee Concerns Program, Sandia’s ethics office, Kone management, and the Office of the General President, Mr. Regensberg wrote that my concerns “were addressed by Kone and Sandia Labs” — a statement about a DOE site’s handling of a permit-required space for which the Local holds no document — and characterized an account that had waived every wage claim as “complaining about not getting paid.”

Sections. Constitution Art. XVIII §1(12).

SUPPORTING FACT

Constitution Article XXVII, Sections 2 and 2(a) require each local to have a Safety Representative “to resolve safety issues” and an Area Safety Committee meeting quarterly with minutes to the Director of Safety. Nothing from January 16 to May 14, 2025 appears to have reached either. The Director of Safety’s files will show whether Local 131’s first-quarter 2025 minutes carry Building 9980. A prior instance — the same call, the same Business Representative, an Intel site, a flooded pit — is in the Local’s records.

ONE WEAKNESS, STATED

Article XXVIII, Paragraph 4(a) requires “a real danger of death or serious injury.” My January 22 draft spoke of “routine hazards.” A board may find the January 23 refusal did not meet 4(a). That is a point against the refusal clause. It is not a point for the accused: the clause I had was Article XXVII, Paragraph 4, already breached, and it was not named either.

THE CHARGE AGAINST THE AUTHOR

The same Section 2 reached me. I held the January 22, 2025 reply as a member from that date until my withdrawal on June 2, 2025. I did not prefer charges in writing. I wrote to Kone, wrote to the Local, delivered a packet to Local leadership on May 14, 2025, and withdrew. A packet is not charges under Section 3. Offense: Article XVIII, Section 2, and Section 1(1). Article XV(B), Section 1 makes a withdrawn member disciplinable under Article XVIII, with cancellation of withdrawn status available. I

will answer any notice served under Section 4.

PROCEDURE

Charges are made in writing, state the offense, the facts, the time and place, and the sections, are signed by the member making the charge, and are filed with the recording secretary (Art. XVIII §3). The Local Executive Board tries them (§4); where a majority of that board is disqualified, the General President appoints hearing officers (§8). Charges against an officer may be filed with the General Executive Board, which has original jurisdiction (§9). The accused is presumed innocent until found guilty (§3).

Kevin Mears — withdrawn, IUEC Local 131, June 2, 2025 — kevin.mears@gmail.com · (954) 214-1877

Public record: github.com/Bluescontact/building-9980-account

Constitution quoted from the 2021 IUEC Constitution and By-Laws (iuec.org). Agreement quoted from the 2022–2027 NEBA Agreement.